

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SWEDEN

Complete Community Opposition How-To

This guide is built around Sweden's two unusual advantages — a near-total right to see the State's own documents (the offentlighetsprincipen) and a legal right for environmental organisations to appeal permit decisions to specialised courts — together with the lever that reached above the courts at Ojnare: EU nature law. It names the tools you'll meet (the environmental permit and consultation, the Land and Environment Courts, Natura 2000, municipal planning, the appeal right) in plain words.

INTRODUCTION & FRAMEWORK

When the limestone company **Nordkalk** sought to open a vast quarry at **Bunge Ducker**, in the **Ojnare** forest on Gotland, beside **Lake Bästeträsk** — a lake that is also a drinking-water reservoir, in a place ringed by protected nature — local residents and a nationwide movement refused to accept it. Through the summer of 2012, activists and Gotlanders physically **blockaded the forest**, standing in front of the machines; the fight ran for a decade through the **Land and Environment Courts**, the county board, the environmental agencies, the national press, and the government. The courts, tellingly, sided with the company more than once — Nordkalk first applied in 2005, and the court granted the permit in 2012 and again in 2014. But the community, the county administrative board, and the environmental agencies kept pressing the one argument the national system could not override — that the area's nature was protected under **European Union law** — and in **August 2015 the government designated it a Natura 2000 site**, which stopped the quarry and saved the forest and the water. By 2017 the protection was settled and the quarry was dead. A project that had won in court was beaten anyway, because a community found the lever that reached above the court.

The Gotlanders and the nationwide movement who saved the Ojnare forest drew on a genuinely strong toolkit, with two distinctive Swedish advantages at its heart. Major projects need an **environmental permit** with **consultation (samråd)**, decided and reviewed by the specialised **Land and Environment Courts**; protest, petition, and litigation are lawful. **Environmental organisations have a legal right to appeal** those decisions. The **offentlighetsprincipen** gives near-total access to the State's documents, so a small group can build a case on the authorities' own paper. **EU nature law (Natura 2000, the Habitats and Birds Directives)** can protect a site above the national courts — the lever that finally reached over the judges at Ojnare. **Municipalities** hold real planning power (the planning monopoly). And a free press and strong civil society amplify a case. But these tools have real limits, and this guide states them plainly. The Ojnare fight was **long** — a decade — and the **courts sided with the company more than once**, so the domestic legal route alone would have lost; it was **EU nature law and a government designation** that finally won, and that lever is not available in every fight. So aim for what these tools can deliver — a permit refused or overturned, a site protected under EU nature law, a project stalled and then stopped — and settle in for a long fight, holding to the argument the national system cannot override.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of permits and approvals, and a chain breaks at its weakest link. A Swedish fight turns on the **environmental permit and consultation**; on the **appeal right** that takes it

to the specialised courts; on the **offentlighetsprincipen** that arms you with the State's own paper; on **EU nature law** that can reach above the courts; and on **municipal planning power** and mobilisation. Every one of those is a link you can grab — and EU nature law, as at Ojnare, is the one that reaches highest. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend months — or years — on this, work out your real situation:

- **If there's a permit process, your appeal right and the offentlighetsprincipen are your everyday levers** — you can see the State's paper and take the decision to a specialised court.
- **If a protected habitat, species, or Natura 2000 site is at stake, EU nature law is your sharpest lever** — it reached above the courts at Ojnare.
- **If the municipality holds planning power, that's a real veto point** — Sweden's planning monopoly gives communes real say.
- **If the domestic courts side with the company, don't give up** — find the argument the national system cannot override, as Ojnare found EU nature law, and hold to it for the long haul.

Read the whole guide once before you move. Two habits run through it: **build your case on the State's own documents and take it to the specialised courts via your appeal right**, and **find the lever that reaches above the national system** — usually EU nature law. That's how Ojnare beat a quarry that had won in court.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Major projects need an **environmental permit** with **consultation (samråd)**, decided and reviewed by the specialised **Land and Environment Courts**, with the **county administrative board** and the environmental agencies involved. **Environmental organisations have a legal right to appeal**. **EU nature law** binds Sweden and can protect a site above the national decision. **Municipalities** hold planning power. And the **offentlighetsprincipen** opens the State's documents to all. Know which of these you can reach — the appeal right and EU nature law are the sharpest.

How a Project Moves — and Where You Jump In

The consultation (samråd) and permit application. *Your opening* — and it arms every later step: take part in the consultation, get the documents, and put your objections on the record.

The permit and the appeal. The Land and Environment Court decides. *Your opening:* your **appeal right** takes a flawed permit up through the specialised courts.

EU nature law. *Your opening* — the one that reached above the courts at Ojnare: press that a protected habitat or Natura 2000 site bars the project, up to a government designation.

Municipal planning. *Your opening:* the municipality's planning power can refuse or shape a project.

Follow the Money and the Permissions

Dig up three things — using the **offentlighetsprincipen** to get the State's own paper. **Who's behind it and what it needs** — the permit, the plan: whatever's contested is the soft spot. **What EU-protected nature it touches** — a Natura 2000 site, a protected species or habitat — because that reaches above the national courts. **What the State's documents show** — the flaws, the risks, the objections the authorities themselves recorded.

Who's Supposed to Be Watching

Each is an ally or an arena. The **Land and Environment Courts** decide and review. The **county administrative board and environmental agencies** assess and can side with the community, as at Ojnare. **EU nature law** protects sites above the national decision. The **municipality** holds planning power. And Sweden's **environmental organisations (with their appeal right), local residents, and a free press** are the forces that reach furthest — the coalition that beat the Ojnare quarry.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether EU-protected nature is engaged, whether you use the appeal right and the State's own documents, and how long you can endure.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (via offentlighetsprincipen)	10–20%	days–weeks	low	The base for everything else
Take part in the consultation (samråd)	15–35%	during permitting	low	On record; conditions or a redo
Appeal to the Land and Environment Courts	30–55%	months–2 yr	low–mod	Permit reviewed or overturned
EU nature law / Natura 2000	35–60%	months–years	low	Site protected above the courts (Ojnare)
Municipal planning power	25–50%	months–yr	low	Project refused or shaped
Environmental-org appeal right	30–55%	months–2 yr	low	Courts engaged by the movement
Blockade + mobilisation + press	25–50%	months–years	low	Time bought; national cause
Everything together (permit, appeal, EU nature law, endurance)	40–65%	years	mod	Permit overturned; site protected; quarry dead
Domestic legal route alone (no EU-nature lever)	20–45%	years	mod	Sometimes lost — need the higher lever

The levers that move the needle most are **EU nature law** (which reached above the courts at Ojnare) and the **appeal right** built on the State's own documents, backed by **municipal planning, blockade, and mobilisation**. Ojnare shows the ceiling (a quarry that won in court beaten anyway, the forest and water saved) and the honest floor (it took a decade, and the domestic courts alone would have lost). So aim for a permit overturned, a site protected under EU nature law, a project stalled and then stopped — and endure.

On cost: the offentlighetsprincipen makes the State's paper free, the appeal right lets organisations litigate affordably, and consultation and mobilisation are cheap. The great strength is transparency plus the appeal right plus EU nature law; the great requirement is endurance and holding to the argument the national system cannot override.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this permit flaw, this Natura 2000 site, this document the State itself holds — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, and its permit and plans.
- 2. Where is it, and what does it touch?** Map it over habitats, species, water, and communities — and flag any **Natura 2000 site, protected species or habitat, or drinking-water source**, because **EU nature law is your sharpest lever** and it reached above the courts at Ojnare.
- 3. What stage is it at, and what's the next deadline?** Is the consultation (samråd) or permit process open? Has the court granted a permit (appeal it)? Is a government designation possible? These openings are time-bound, though the fight is long.
- 4. What do the State's own documents show?** Use the **offentlighetsprincipen** to get them, and read them for the flaws, risks, and objections the authorities recorded.
- 5. Who can appeal, and who's your coalition?** An **environmental organisation with the appeal right**; the community; the municipality; the county board and agencies (which sided with Ojnare). Ojnare joined all of these.

What this looks like in real life. A quarry or mine threatens a protected forest and a drinking-water source, its permit granted by the court. The five questions yield: the company and its permit; the Natura 2000 nature and the water (your sharpest lever); the permit to appeal; the State's own documents showing the risks; and an environmental organisation, the municipality, and the agencies to act. That's the Ojnare pattern — appeal on the State's paper, press EU nature law above the courts, and endure.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and in Sweden, the State hands you much of it. Build it in three layers.

Layer one: the State's own paper (offentlighetsprincipen). Use your **near-total right to the State's documents** to get the permit application, the consultation record, the county board's and agencies' assessments, and the environmental studies. Then read them for the flaws, risks, and objections the authorities themselves recorded — your case, built on their paper.

Layer two: the EU-protected nature. Document the **habitats, species, Natura 2000 value, and the water source** the project would harm — the lever that reaches above the national courts, and the one that won Ojnare — with dated evidence and expert reports.

Layer three: the map of harm and protection. Lay the project over the protected nature and the water, so the EU-nature case and the harm are undeniable. Walking into the consultation, the Land and Environment Courts, or the government with the State's own documents, the EU-protected nature, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The State's own documents** — the permit application, consultation record, county board and agency assessments, environmental studies — via the *offentlighetsprincipen*.
- **The EU-protected nature** — the habitats, species, Natura 2000 value, and the water source.
- **The permit's flaws** — what the State's paper itself reveals.
- **The map of harm and protection** — the project laid over the protected nature and water.
- **Expert reports and dated evidence** — on the habitats, species, and water.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; an environmental organisation with the appeal right, a durable movement, and the agencies give you the power Ojnare showed. Build in four moves.

Get an environmental organisation with the appeal right. The distinctive Swedish lever: **environmental organisations can appeal** permit decisions to the specialised courts. Reach one early — it is how a small group takes the case before a judge.

Bring in experts, and use the State's paper. An EU-nature and permit fight needs credible ecological and legal expertise — on the habitats, the water, the permit's flaws — built on the documents the *offentlighetsprincipen* hands you.

Enlist the agencies and the municipality. At Ojnare, the **county administrative board and the environmental agencies** sided with the community, and the municipality's planning power mattered. Bring them in — they can carry the EU-nature argument with you.

Build to last, and mobilise. Ojnare ran a decade, with a blockade and a national movement. Build clear roles, a secure archive, a way to decide together, and the endurance for a long fight — and, where warranted, a visible, lawful stand that buys time and makes a national cause.

STEP 4: THE APPEAL RIGHT, EU NATURE LAW & THE COURTS

Sweden's sharpest levers are the appeal right built on the State's own paper, and EU nature law, which reaches above the national courts.

The Offentlighetsprincipen and the Appeal Right

Start with Sweden's two advantages: use the *offentlighetsprincipen* to build your case on the State's own documents, and use the **environmental organisations' appeal right** to take a flawed permit to the specialised **Land and Environment Courts**. Together they let a small group litigate affordably on the authorities' own paper.

EU Nature Law — the Lever That Reaches Above the Courts

The Ojnare lesson: the domestic courts may side with the company, but **EU nature law** — the Habitats and Birds Directives and **Natura 2000** — can protect a site **above** the national decision, up to a **government designation**, as it did at Ojnare in 2015. Where a project threatens a protected habitat, species, or Natura 2000 site, this is your sharpest lever and the argument the national system cannot override.

Municipal Planning and the Blockade

Use the **municipality's planning power** (the planning monopoly) to refuse or shape a project. And, where warranted, a lawful **blockade or visible stand** — as at Ojnare — buys time and builds a national cause, though it must be paired always with the legal and EU-nature route.

The Honest Limits

Straight talk: the appeal right, the offentlighetsprincipen, and EU nature law are powerful, but the domestic courts alone may lose (they did at Ojnare), and the fight is long. So use the strong tools — the State's paper, the appeal right, EU nature law, municipal planning, and mobilisation — hold to the argument the national system cannot override, and count a permit overturned, a site protected under EU nature law, and a project stalled and then stopped as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

The State's own paper becomes your case. Not "we think it's risky" but *"the county board's own assessment records the risk to the drinking water — here it is."*

Protected nature becomes the higher argument. Not "we oppose the quarry" but *"this is a Natura 2000 site / a protected habitat under EU law — which reaches above the national court,"* as at Ojnare.

A flawed permit becomes an appeal. *"The permit ignored [this] — we appeal it to the Land and Environment Court."*

The water becomes a public cause. *"This threatens a drinking-water reservoir — a matter for the whole nation."*

Match it to the venue: the State's paper and the permit flaws to the courts; the EU-protected nature to the courts and the government designation; the planning to the municipality; the water and the forest to the press.

STEP 5: MEDIA STRATEGY

In Sweden, national attention is a real lever — Ojnare became a national cause that sustained a decade-long fight — and a free press and strong civil society make the media front central.

Lead with the water, the forest, and the protected nature, not procedure. Not "the permit was flawed" but "a vast quarry beside a drinking-water reservoir, in a protected forest — beaten by EU nature law." Use your strongest material: the State's own documents, the EU-protected nature, the water, and the blockade's stand.

Work several audiences at once. Swedish press and public sustain the long fight and the national cause; EU-level attention reaches the nature-law argument, where it bites above the national courts. Make it easy: clear summaries, a map, the State's own findings, strong images of the forest and the stand.

Two hard rules. Accuracy above all — one exaggeration can discredit everything, especially built on the State's own careful documents. And keep it durable — a decade-long cause needs a movement that renews itself.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Documents request (offentlighetsprincipen).

Subject: Request for public documents — [project].

"Under the offentlighetsprincipen, we, [group/residents], request the permit application, the consultation record, the county board's and agencies' assessments, and the environmental studies for [project] at [location]. [Contact.]"

8B — Objection in the consultation (samråd).

Subject: Objection — [project] samråd.

"We, [group], object to [project]: [it threatens a Natura 2000 site / a protected habitat / a drinking-water source; the assessment is flawed]. We ask that it be refused or reassessed. [Attach evidence.]"

8C — Appeal to the Land and Environment Court (to an environmental org).

Subject: Appeal of the permit — [project].

"As an environmental organisation with the right to appeal, we ask you to challenge the permit for [project], on [the flaws in the State's own documents / EU nature law]. [Attach evidence.]"

8D — Pressing EU nature law (to the county board / government).

Subject: EU-protected nature and [project].

"We submit that [project] threatens [a Natura 2000 site / a protected habitat / species] under EU nature law, which bars it: [specifics]. We ask for its protection, up to a Natura 2000 designation, as at Ojnare. [Attach evidence.]"

8E — To the municipality (planning power).

Subject: Planning and [project].

"We, residents of [place], ask the municipality to use its planning power to refuse or shape [project], on the harm to [nature/water]. [Attach evidence.]"

8F — To the company.

Subject: Legal and reputational risk — [project].

"We are the community affected by [project] at [location]. It threatens EU-protected nature and a drinking-water source, and faces appeal and the EU-nature argument that reached above the courts at Ojnare. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: A quarry threatens [forest]'s drinking water — [project].

"[Project] would open a vast quarry beside [our drinking-water source], in a protected forest. We can provide the State's own documents, the EU-protected nature, and photographs. [Contact.]"

8H — Rallying the movement.

Subject: Let's save [forest] — the Ojnare way.

"[Project] threatens [our forest and water]. At Ojnare, a decade of blockade, the State's own paper, the appeal right, and EU nature law beat a quarry that had won in court. With endurance and the right levers, we can too. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean — though the fight is long — do these six things, in order:

1. **Get the State's own documents via the offentlighetsprincipen (8A).**
2. **Flag any Natura 2000 site, protected habitat, or water source — your sharpest, court-beating lever.**
3. **Object in the consultation (8B).**
4. **Get an environmental organisation to appeal the permit (8C).**
5. **Press EU nature law up to a government designation (8D), and the municipality's planning power (8E).**
6. **Make the forest and water a national cause (8G/8H) — and endure.**

Even lean, those six build on the State's paper, use the appeal right, and press EU nature law — the Ojnare template.

WHEN THE SYSTEM IS TILTED

Sweden's tools are strong, but the domestic route can lose, and you must plan for it.

When the courts side with the company. They did at Ojnare — more than once. Don't give up: find the argument the national system cannot override — usually **EU nature law** — and press it up to a government designation.

When the fight is long. Ojnare ran a decade. Build a durable, renewing movement and archive, and hold to the higher argument through every setback.

When the permit is granted. Use your appeal right to take it to the specialised courts, and the EU-nature argument above them.

When you need to buy time. A lawful blockade or visible stand, as at Ojnare, buys time and builds a national cause — paired always with the legal and EU-nature route.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Sweden is, by repute and record, unusually clean, so outright corruption is rare — but capture by industry interests and the underweighing of nature are the real risks, and the offentlighetsprincipen is your guard.

How to spot it. Assessments that understate the harm; permits against the evidence; decisions that favour a company; benefits to the connected while nature and water bear the cost.

Who's supposed to guard against it. The **offentlighetsprincipen** exposes the State's own paper. The **Land and Environment Courts** and the **appeal right** can overturn a tainted permit. **EU nature law** and the **European Commission** protect above the national decision. And Sweden's **free press and environmental organisations** press for nature to be properly weighed.

How to fight it safely. The issue here is usually bias or underweighing, not graft — so use the **offentlighetsprincipen** to document precisely what the State's own paper shows, and press, through the appeal right and EU nature law, for it to be weighed. Keep every claim exact; built on the State's documents, it is your strongest position.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The State's own paper builds your case; the EU-protected nature aims it; an environmental organisation, the agencies, and the municipality are the muscle; the appeal right, EU nature law, and municipal planning press it; the national cause sustains it. Together they multiply. One at a time, they stall — and the fight is long.

Early on (weeks 1–8): get the State's documents via the **offentlighetsprincipen**; flag the EU-protected nature; object in the consultation; enlist an environmental organisation with the appeal right; build a coalition with the agencies and municipality.

In the thick of it (months–years): appeal the permit; press EU nature law up to a government designation; use municipal planning; make a national cause, with a lawful stand if warranted.

The long haul (years): hold to the higher argument through every setback; keep the movement renewing; hold the line for a permit overturned, a site protected under EU nature law, and a project stalled and then stopped.

FINAL ASSESSMENT

Stopping a destructive project in Sweden can be done — a quarry that had won in court was beaten anyway, and a Gotland forest and its drinking water were saved. Hold both truths. Sweden's distinctive power is real: a near-total right to see the State's own documents (the **offentlighetsprincipen**), a legal right for environmental organisations to appeal to specialised courts, and — the lever that reached above the courts at Ojnare — EU nature law, together with municipal planning power and mobilisation. And the constraints are real: the fight can be long, and the domestic courts alone may side with the company, so a win often needs the argument the national system cannot override.

Here's the discipline that wins. Build your case on the State's own paper, using the **offentlighetsprincipen**, and read it for the flaws and risks the authorities themselves recorded. Take a flawed permit to the specialised Land and Environment Courts through an environmental organisation's appeal right. And when the domestic courts side with the company, find the lever that reaches above them — usually EU nature law, the Habitats and Birds Directives and Natura 2000 — and press it up to a government designation, as Ojnare did in 2015. Use the municipality's planning power, enlist the county board and agencies, and, where warranted, a lawful blockade that buys time and builds a national cause. Above all, endure, and hold to the argument the national system cannot override. Count a permit overturned, a site protected under EU nature law, and a project stalled and then stopped as wins. That's what Ojnare did — the State's paper, the appeal right, EU nature law, and a decade's endurance together. So can you.